

Franciscus Dylan Rosario,
7624 Melody
Rohnert Park, CA 94928
E: soltrinox@gmail.com
Plaintiff, In Pro Per

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

**Franciscus Dylan Rosario,
PLAINTIFF,**

v.

CSAA Insurance Exchange;
and DOES 1 through 50, inclusive;
DEFENDANTS

Case No.: CGC-25-631802

**PLAINTIFF'S SUPPLEMENTAL
REQUEST FOR JUDICIAL NOTICE
(INS. CODE 790.03(h); 10 CCR 2695.1
TO 2695.14)**

(Evid. Code § 451–453)

Dept.: 302

Date: June 24, 2026

1 COURTESY COPY COVER SHEET AND READING GUIDE (TAB 08)

Case: Rosario v. CSAA Insurance Exchange (CGC-25-631802) **Department:** 302 **Judge:** Hon. Joseph M. Quinn **Hearing:** June 24, 2026, 9:00 a.m., Dept. 302, Hon. Joseph M. Quinn.

1.1 PAGE 1: COURTESY COPY COVER SHEET (TAB 08)

**COURTESY COPY COVER SHEET FOR PLAINTIFF'S SUPPLEMENTAL REQUEST
FOR JUDICIAL NOTICE (INS. CODE 790.03(h); 10 CCR 2695.1 TO 2695.14)**

TAB 08

1.1.1 Verbatim May 13, 2026 minute order (Dept. 302)

“CONTINUED TO JUNE 24, 2026 PER AGREEMENT OF THE PARTIES AND APPROVAL OF THE COURT. ALL PARTIES IMMEDIATELY TO PROVIDE COURTESY COPIES OF THEIR FILINGS PER SF LOCAL RULE 2.7B WITH A COVER LETTER REFLECTING THE NEW HEARING DATE.”

1.1.2 Designation

The attached document was filed May 8, 2026 under Transaction ID 79429280.

It is operative for the consolidated June 24, 2026 hearing per Plaintiff's Notice of Withdrawal and Designation of Operative Oppositions (TX 79429280, filed May 8, 2026), Plaintiff's Notice of Hearing Date Re-Designation and Compliance with SF Local Rule 2.7B (filed May 21, 2026), and Plaintiff's Notice Acknowledging Court-Ordered Consolidation (filed May 21, 2026). No caption is altered. The attached document is presented as filed, as a chambers courtesy copy under SF Local Rule 2.7B and the May 13, 2026 minute order.

1.1.3 Non-pleading notice

THIS COVER SHEET IS A NON-PLEADING CHAMBERS ROUTING AID. IT REOPENS NO BRIEFING AND INTRODUCES NO NEW AUTHORITY.

1.1.4 Signature

Dated: May 21, 2026

FRANCISCUS DYLAN ROSARIO Plaintiff, In Pro Per 7624 Melody Rohnert Park, CA 94928
650.488.7510 E: soltrinox@gmail.com

1.2 PAGE 2: READING GUIDE (TAB 08)

What this document is: Regulatory floor for the Flatley illegality channel.

Incorporated into: TAB 03 Section IV (Flatley) and TAB 14 (extended 425.17 analysis).

Ties to: TAB 41 (refreshed Supp RFJN on Insurance Code/FCSPR for June 24).

1.2.1 Reading guide footer

READING GUIDE IS A NON-PLEADING BENCH AID. IT INTRODUCES NO NEW AUTHORITY AND REOPENS NO BRIEFING. THE UNDERLYING DOCUMENT FOLLOWS THIS PAGE AS FILED.

Franciscus Dylan Rosario
7624 Melody Drive
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Tel: 650.488.7510
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Plaintiff, In Pro Per

SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNLIMITED CIVIL JURISDICTION

FRANCISCUS DYLAN ROSARIO,
PLAINTIFF,
v.
CSAA INSURANCE EXCHANGE
DEFENDANT

Case No.: CGC-25-631802

PLAINTIFF'S SUPPLEMENTAL REQUEST FOR
JUDICIAL NOTICE (INSURANCE CODE §790.03(h);
FAIR CLAIMS REGULATIONS)

(Evid. Code, §§451(a)–(c), 452, 453; Cal. Rules of Court, rule 3.1113(l))

Cross-noticed for hearing May 13, 2026, 9:00 a.m.,
Dept. 302; see schedule below. Complaint filed:
Dec. 23, 2025
FAC filed: Feb. 25, 2026

Anti-SLAPP	Demurrer	MTS (CCP section 436)
May 13, 2026 9:00 a.m., Dept. 302 Defendant CSAA Insurance Ex- change	May 13, 2026 9:00 a.m., Dept. 302 Defendant CSAA Insurance Ex- change	May 13, 2026 9:00 a.m., Dept. 302 Defendant CSAA Insurance Ex- change

1 PLAINTIFF'S AUTHORITY TO FILE

2 Plaintiff Dylan Franciscus Rosario submits this Supplemental Request for Judicial Notice
3 of California Insurance Code section 790.03(h) and Fair Claims Settlement Practices Reg-
4 ulations (10 CCR sections 2695.1 through 2695.8) under California Evidence Code sections
5 451(a) through (c), 452, and 453, and California Rules of Court, rule 3.1113(l). Plaintiff's
6 right to seek judicial notice of the cited statutes and regulations is preserved by Evidence
7 Code section 453. This Supplemental Request is filed as a separate document under CRC
8 3.1113(l) and is incorporated by reference under CRC 3.1113(j) by the principal Request for
9 Judicial Notice (Request for Judicial Notice (item 03, filed May 8, 2026)) filed concurrently.
10 Filed on May 8, 2026 for the May 13, 2026, 9:00 a.m. hearing in Department 302.

11 AUTHORITY AND STANDARD

12 Plaintiff respectfully submits this Supplemental Request for Judicial Notice in support of
13 Plaintiff's Operative Opposition to Defendant's Special Motion to Strike Pursuant to C.C.P.
14 section 425.16 (item 01, filed May 8, 2026), Plaintiff's Operative Opposition to Defendant's
15 Demurrer (item 01B, filed May 8, 2026), Plaintiff's Operative Opposition to Defendant's
16 Motion to Strike Pursuant to C.C.P. section 436 (item 01C, filed May 8, 2026), and Plaintiff's
17 Notice and Statement re C.C.P. section 425.17 (item 13, filed May 8, 2026), Section IV-A.
18 This Supplemental Request is filed under California Rules of Court, rule 3.1113(l) (RFJN
19 as a separate document not subject to the fifteen-page memorandum cap), CRC 3.1306(c),
20 and Evidence Code sections 451(a), 451(b), 452(b), 452(c), 452(h), and 453.

21 Evidence Code section 451(a) requires the Court to take judicial notice of the decisional,
22 constitutional, and statutory law of California; section 451(b) requires the Court to take
23 judicial notice of any matter made a subject of judicial notice by the rules of any court of
24 record of California; section 452(b) authorizes notice of regulations and legislative enactments
25 issued by or under the authority of any public entity in the United States; section 452(c)
26 authorizes notice of official acts of the legislative, executive, and judicial departments of the
27 United States and any state of the United States; and section 452(h) authorizes notice of facts
28 and propositions that are not reasonably subject to dispute and are capable of immediate and
29 accurate determination by resort to sources of reasonably indisputable accuracy. Evidence
30 Code section 453 obligates the Court to take judicial notice of any matter described in
31 section 452 if a party requests it, gives each adverse party sufficient notice of the request,

1 and furnishes the Court with sufficient information to enable the Court to take judicial notice
2 of the matter.

3 Plaintiff has served this Supplemental Request on Defendant concurrently with the Oper-
4 ative Oppositions, the Notice re C.C.P. section 425.17, and Plaintiff's Request for Judicial
5 Notice (item 03 of the May 13, 2026 hearing package, filed contemporaneously). Plaintiff
6 furnishes the Court with the section number, the verbatim or paraphrased text, and the
7 standard citation form for each provision below. Each provision is part of the published
8 California Codes (Insurance Code) or the California Code of Regulations, title 10 (10 CCR),
9 promulgated by the Insurance Commissioner under the authority of Insurance Code sections
10 790.02, 790.03, and 790.10, and codified by the Office of Administrative Law. The Court
11 may consult the California Codes and the official California Code of Regulations website
12 (oal.ca.gov; cdi.ca.gov; gov.westlaw.com) to verify each provision.

13 In CGC-25-631802, the relevance of this Supplemental RFJN is especially direct: CSAA In-
14 surance Exchange IS the named defendant, a licensed California insurer whose claim-handling
15 conduct constitutes the gravamen of the FAC. Every provision below governs CSAA's regu-
16 lated conduct as a matter of California law.

17
18 SECTION A. CALIFORNIA INSURANCE CODE (EVID. CODE SECTION 451(A))

19 Plaintiff requests judicial notice of the text of the following California Insurance Code provi-
20 sions, of which judicial notice is mandatory under Evid. Code section 451(a). Each provision
21 governs Defendant CSAA Insurance Exchange's regulated insurance product and bears on
22 Plaintiff's Operative Opposition arguments and on Plaintiff's Notice re C.C.P. section 425.17,
23 Sections III, IV, and IV-A.

24 A.1. INSURANCE CODE SECTION 790.02 (UNFAIR INSURANCE PRACTICES ACT;
25 STATUTORY PURPOSE)

26 Verbatim:

27 "The purpose of this article is to regulate trade practices in the business of insur-
28 ance in accordance with the intent of Congress as expressed in the Act of Congress
29 of March 9, 1945 (Public Law 15, 79th Congress), by defining, or providing for the
30 determination of, all such practices in this State which constitute unfair methods
31 of competition or unfair or deceptive acts or practices and by prohibiting the trade

practices so defined or determined.”
(Ins. Code, section 790.02.)

A.2. INSURANCE CODE SECTION 790.03(H) (UNFAIR CLAIM SETTLEMENT PRACTICES; LEAD-IN)

Verbatim lead-in:

“The following are hereby defined as unfair methods of competition and unfair and deceptive acts or practices in the business of insurance: ... (h) Knowingly committing or performing with such frequency as to indicate a general business practice any of the following unfair claims settlement practices”

(Ins. Code, section 790.03, subd. (h).)

A.3. INSURANCE CODE SECTION 790.03(H)(1) (MISREPRESENTING FACTS OR POLICY PROVISIONS)

Verbatim:

“Misrepresenting to claimants pertinent facts or insurance policy provisions relating to any coverages at issue.”

(Ins. Code, section 790.03, subd. (h)(1).)

A.4. INSURANCE CODE SECTION 790.03(H)(3) (REASONABLE STANDARDS FOR PROMPT INVESTIGATION)

Verbatim:

“Failing to adopt and implement reasonable standards for the prompt investigation and processing of claims arising under insurance policies.”

(Ins. Code, section 790.03, subd. (h)(3).)

A.5. INSURANCE CODE SECTION 790.03(H)(4) (ACKNOWLEDGE AND ACT PROMPTLY)

Verbatim:

“Failing to acknowledge and act reasonably promptly upon communications with respect to claims arising under insurance policies.”

(Ins. Code, section 790.03, subd. (h)(4).)

A.6. INSURANCE CODE SECTION 790.03(H)(5) (GOOD-FAITH SETTLEMENT)

Verbatim:

“Not attempting in good faith to effectuate prompt, fair, and equitable settlements of claims in which liability has become reasonably clear.”

1 (Ins. Code, section 790.03, subd. (h)(5).)

2 A.7. INSURANCE CODE SECTION 790.03(H)(6) (COMPELLING LITIGATION)

3 Verbatim:

4 “Compelling insureds to institute litigation to recover amounts due under an insur-
5 ance policy by offering substantially less than the amounts ultimately recovered in
6 actions brought by the insureds, when the insureds have made claims for amounts
7 reasonably similar to the amounts ultimately recovered.”

8 (Ins. Code, section 790.03, subd. (h)(6).)

9 A.8. INSURANCE CODE SECTION 790.03(H)(7) (ADVERTISING MISMATCH)

10 Verbatim:

11 “Attempting to settle a claim by an insured for less than the amount to which
12 a reasonable person would have believed that the insured was entitled by refer-
13 ence to written or printed advertising material accompanying or made part of an
14 application.”

15 (Ins. Code, section 790.03, subd. (h)(7).)

16 A.9. INSURANCE CODE SECTION 790.03(H)(11) (ARBITRATION APPEALS)

17 Verbatim:

18 “Making known to insureds or claimants a practice of the insurer of appealing
19 from arbitration awards in favor of insureds or claimants for the purpose of com-
20 pelling them to accept settlements or compromises less than the amount awarded
21 in arbitration.”

22 (Ins. Code, section 790.03, subd. (h)(11).)

23 A.10. INSURANCE CODE SECTION 790.03(H)(13) (REASONABLE EXPLANATION
24 OF DENIAL)

25 Verbatim:

26 “Failing to provide promptly a reasonable explanation of the basis relied on in the
27 insurance policy, in relation to the facts or applicable law, for the denial of a claim
28 or for the offer of a compromise settlement.”

29 (Ins. Code, section 790.03, subd. (h)(13).)

1 A.11. INSURANCE CODE SECTION 790.04 (COMMISSIONER EXAMINATION AU-
2 THORITY)

3 Paraphrased: section 790.04 authorizes the Insurance Commissioner to examine and inves-
4 tigate the affairs of every person engaged in the business of insurance in this state in order
5 to determine whether such person has been engaged in any unfair method of competition or
6 in any unfair or deceptive act or practice prohibited by section 790.03.

7 (Ins. Code, section 790.04.)

8 A.12. INSURANCE CODE SECTION 790.05 (CEASE-AND-DESIST ORDERS; MONE-
9 TARY PENALTIES)

10 Paraphrased: section 790.05 authorizes the Insurance Commissioner, after notice and hear-
11 ing, to issue cease-and-desist orders against any person engaged in the business of insurance
12 who has been or is engaged in any unfair method of competition or any unfair or deceptive act
13 or practice defined in section 790.03, and to impose monetary penalties for noncompliance.

14 (Ins. Code, section 790.05.)

15 A.13. INSURANCE CODE SECTION 791.03 (INSURANCE INFORMATION AND PRI-
16 VACY PROTECTION ACT; COLLECTION AND HANDLING)

17 Paraphrased: section 791.03 imposes notice, disclosure, and authorization requirements on
18 insurers' collection of personal information from insureds, applicants, and claimants in con-
19 nection with insurance transactions.

20 (Ins. Code, section 791.03.)

21 A.14. INSURANCE CODE SECTION 791.13 (INSURANCE INFORMATION AND PRI-
22 VACY PROTECTION ACT; DISCLOSURE LIMITATIONS)

23 Paraphrased: section 791.13 prohibits an insurance institution, agent, or insurance-support
24 organization from disclosing any personal or privileged information about an individual col-
25 lected or received in connection with an insurance transaction except as enumerated in the
26 section.

27 (Ins. Code, section 791.13.)
28

1 SECTION B. FAIR CLAIMS SETTLEMENT PRACTICES REGULATIONS (10 CCR
2 SECTIONS 2695.1 TO 2695.8) (EVID. CODE SECTION 451(B), SECTION 452(B))

3 Plaintiff requests judicial notice of the text of the following provisions of title 10, California
4 Code of Regulations, sections 2695.1 to 2695.8, promulgated by the Insurance Commissioner
5 under the authority of Insurance Code section 790.10 and known as the Fair Claims Set-
6 tlement Practices Regulations. Judicial notice is mandatory under Evidence Code section
7 451(b) and authorized under section 452(b). The regulations implement Insurance Code sec-
8 tion 790.03(h) and bind every insurer doing business in California, including CSAA Insurance
9 Exchange, the named defendant in CGC-25-631802.

10 B.1. 10 CCR SECTION 2695.1(A) (PURPOSE AND APPLICABILITY)

11 Verbatim:

12 “The purpose of these regulations is to promote the good faith, prompt, efficient
13 and equitable settlement of claims and to define certain minimum standards for
14 the settlement of claims which, when violated knowingly on a single occasion or
15 performed with such frequency as to indicate a general business practice shall
16 constitute an unfair claims settlement practice within the meaning of Insurance
17 Code Section 790.03(h).”

18 (10 Cal. Code Regs., section 2695.1, subd. (a).)

19 B.2. 10 CCR SECTION 2695.1(D) (MANDATORY MINIMUM STANDARDS; VIOLA-
20 TION EQUALS UNFAIR PRACTICE)

21 Verbatim:

22 “These regulations are not meant to provide the exclusive definition of all unfair
23 claims settlement practices. ... The standards in these regulations are minimum
24 standards. ... Failure of an insurer or other licensee to comply with the require-
25 ments of these regulations may constitute a violation of the Unfair Practices Act,
26 Insurance Code Section 790.02 or 790.03.”

27 (10 Cal. Code Regs., section 2695.1, subd. (d).)

28 B.3. 10 CCR SECTION 2695.2(C) (DEFINITION OF “CLAIM”)

29 Verbatim:

30 “Claim means a request or demand on an insurer for payment of benefits according
31 to the terms of an insurance policy. Claim does not include a request for coverage.”

(10 Cal. Code Regs., section 2695.2, subd. (c).)

B.4. 10 CCR SECTION 2695.2(T) (DEFINITION OF “PROOF OF CLAIM”)

Paraphrased: proof of claim means any evidence or documentation in the possession of the insurer, whether as a result of its having been submitted by the claimant or obtained by the insurer in the course of its investigation, that provides any evidence of the claim and that reasonably supports the magnitude or the amount of the claimed loss.

(10 Cal. Code Regs., section 2695.2, subd. (t).)

B.5. 10 CCR SECTION 2695.2(Y) (DEFINITION OF “INVESTIGATION”)

Paraphrased: investigation means all activities of an insurer or its claims agent related to the determination of coverage, liabilities, or nature and extent of loss or damage for which benefits are afforded by an insurance policy, obligations or duties under a bond, and other obligations or duties arising from an insurance policy or bond.

(10 Cal. Code Regs., section 2695.2, subd. (y).)

B.6. 10 CCR SECTION 2695.3 (FILE AND RECORD DOCUMENTATION)

Paraphrased: every licensee’s claim files shall contain all documents, notes, and work papers (including copies of all correspondence) which reasonably pertain to each claim in such detail that pertinent events and the dates of the events can be reconstructed; the licensee shall maintain claim data that are accessible, legible, and retrievable for examination, and the data shall be retained as required by law.

(10 Cal. Code Regs., section 2695.3.)

B.7. 10 CCR SECTION 2695.4(A) (REPRESENTATIONS TO CLAIMANTS)

Paraphrased: every insurer shall disclose to a first-party claimant or beneficiary all benefits, coverage, time limits, or other provisions of any insurance policy issued by that insurer that may apply to the claim presented; when additional benefits might reasonably be payable under an insured’s policy upon receipt of additional proofs of claim, the insurer shall immediately communicate this to the insured.

(10 Cal. Code Regs., section 2695.4, subd. (a).)

B.8. 10 CCR SECTION 2695.5(B), (C) (ACKNOWLEDGMENT AND PENDENCY)

Paraphrased: subdivision (b) requires that, upon receiving any communication from a claimant regarding a claim that reasonably suggests a response is expected, every licensee shall immediately, but in no event more than fifteen calendar days after receipt of that com-

1 munication, furnish the claimant with a complete response based on the facts as then known
2 by the licensee. Subdivision (c) requires that every insurer, upon receiving notice of claim,
3 shall immediately, but in no event more than fifteen calendar days later, acknowledge receipt
4 of such notice to the claimant and provide claim forms and instructions.

5 (10 Cal. Code Regs., section 2695.5, subds. (b), (c).)

6 B.9. 10 CCR SECTION 2695.7(B) (FORTY-DAY DETERMINATION)

7 Verbatim:

8 “Upon receiving proof of claim, every insurer, except those subject to Insurance
9 Code Sections 10169-10169.5, shall immediately, but in no event more than forty
10 (40) calendar days later, accept or deny the claim, in whole or in part.”

11 (10 Cal. Code Regs., section 2695.7, subd. (b).)

12 B.10. 10 CCR SECTION 2695.7(B)(1) (ALL BASES FOR DENIAL; WRITTEN STATE-
13 MENT)

14 Verbatim:

15 “Where an insurer denies or rejects a first party claim, in whole or in part, it shall
16 do so in writing and shall provide to the claimant a statement listing all bases for
17 such rejection or denial and the factual and legal bases for each reason given for
18 such rejection or denial which is then within the insurer’s knowledge.”

19 (10 Cal. Code Regs., section 2695.7, subd. (b)(1).)

20 B.11. 10 CCR SECTION 2695.7(B)(3) (DEPARTMENT OF INSURANCE REVIEW NO-
21 TICE)

22 Verbatim:

23 “Written notice of denial of any claim shall include a statement that, if the claimant
24 believes the claim has been wrongfully denied or rejected, he or she may have the
25 matter reviewed by the California Department of Insurance ...”

26 (10 Cal. Code Regs., section 2695.7, subd. (b)(3).)

27 B.12. 10 CCR SECTION 2695.7(C)(1) (STATUS UPDATES WHEN MORE TIME IS
28 NEEDED)

29 Verbatim:

30 “If more than forty (40) calendar days are required to determine whether a claim
31 should be accepted and/or denied in whole or in part, every insurer shall provide

1 the claimant, within forty (40) calendar days after receipt of the proof of claim,
2 with written notice of the need for additional time Such written notice shall be
3 sent every thirty (30) days thereafter”

4 (10 Cal. Code Regs., section 2695.7, subd. (c)(1).)

5 B.13. 10 CCR SECTION 2695.7(D) (THOROUGH, FAIR, AND OBJECTIVE INVESTI-
6 GATION)

7 Verbatim:

8 “Every insurer shall conduct and diligently pursue a thorough, fair and objective
9 investigation and shall not persist in seeking information not reasonably required
10 for or material to the resolution of a claim dispute.”

11 (10 Cal. Code Regs., section 2695.7, subd. (d).)

12 B.14. 10 CCR SECTION 2695.7(G) (NO UNREASONABLY LOW SETTLEMENTS)

13 Verbatim:

14 “No insurer shall attempt to settle a claim by making a settlement offer that is
15 unreasonably low.”

16 (10 Cal. Code Regs., section 2695.7, subd. (g).)

17 B.15. 10 CCR SECTION 2695.7(H) (TIMELY TENDER)

18 Paraphrased: subdivision (h) requires that, upon acceptance of the claim in whole or in part,
19 the insurer shall tender payment within thirty calendar days, subject to limited tolling for
20 claimant compliance.

21 (10 Cal. Code Regs., section 2695.7, subd. (h).)

22 B.16. 10 CCR SECTION 2695.8 (AUTOMOBILE INSURANCE)

23 Paraphrased: section 2695.8 imposes additional auto-specific duties on insurers handling
24 automobile claims, including standards for first-party and third-party automobile total losses,
25 partial losses, salvage, and storage; the section establishes prompt-payment, documentation,
26 and disclosure obligations specific to the automobile-claim context.

27 (10 Cal. Code Regs., section 2695.8.)
28

1 SECTION C. RELIABLE-SOURCE AUTHENTICATION AND EVID. CODE SECTION
2 453 STATEMENT

3 For each provision identified in Section A, the official text is published in the West's Anno-
4 tated California Codes (Insurance Code) and is available at gov.westlaw.com, codes.findlaw.com
5 (California Insurance Code), and the official California Legislative Information website at
6 leginfo.legislature.ca.gov. For each provision identified in Section B, the official text is pub-
7 lished at oal.ca.gov (Office of Administrative Law) and at the California Department of
8 Insurance regulatory page (cdi.ca.gov), and is also available at gov.westlaw.com (10 CCR
9 section 2695). Plaintiff has independently verified each verbatim excerpt against the pub-
10 lished text. Plaintiff requests judicial notice of the text of the provisions only, not of any
11 disputed factual matter that might be inferred from the text. The Court may consult any
12 of the above-referenced sources to confirm the text of each provision.

13 Pursuant to Evidence Code section 453, the predicates for mandatory judicial notice are
14 satisfied: (i) Plaintiff has requested judicial notice of each enumerated provision; (ii) Plaintiff
15 has given Defendant sufficient notice of the request through contemporaneous service of this
16 Supplemental Request on Defendant's counsel of record at Porter Scott, P.C. (Mark G. Tapp,
17 Tyler J. O'Connell, Mason Schubert, Sarah J. Blithe) on May 8, 2026; and (iii) Plaintiff
18 has furnished the Court with sufficient information (verbatim or paraphrased text plus the
19 section number and standard citation form) to enable the Court to take judicial notice of
20 each provision.

21
22 SECTION D. CROSS-REFERENCES; RELATIONSHIP TO OTHER MAY 8, 2026 FIL-
23 INGS

24 This Supplemental Request is filed contemporaneously with, and in support of, the following
25 May 8, 2026 filings in this action:

- 26 1. Plaintiff's Operative Opposition to Defendant's Special Motion to Strike Pursuant to
27 C.C.P. section 425.16 (Anti-SLAPP Opposition (item 01, filed May 8, 2026)). The
28 Anti-SLAPP Opposition's Section III-bis (§ 425.17(c) commercial-speaker direct appli-
29 cation) and Section IV (Flatley illegality) incorporate the regulatory floor of Insurance
30 Code section 790.03(h) and 10 CCR sections 2695.1 to 2695.8 by reference under CRC
31 3.1113(j).

2. Plaintiff's Operative Opposition to Defendant's Demurrer (item 01B). The Demurrer Opposition's Section II.B (Zhang v. Superior Court UCL predicate) is grounded in the Insurance Code and 10 CCR provisions identified in Sections A and B above.
3. Plaintiff's Operative Opposition to Defendant's Motion to Strike Pursuant to C.C.P. section 436 (item 01C). The MTS-CCP436 Opposition's Section V (cross-reference to § 425.17(c)) is grounded in the same provisions.
4. Plaintiff's Request for Judicial Notice (item 03 of the May 13, 2026 hearing package). Section B of that RFJN identifies the same Insurance Code and 10 CCR provisions and incorporates this Supplemental RFJN by reference under CRC 3.1113(j).
5. Plaintiff's Notice and Statement re C.C.P. section 425.17 (Notice re CCP 425.17 (item 13, filed May 8, 2026)). Section IV-A of that Notice ties each Insurance Code section 790.03(h) sub-paragraph and each 10 CCR section 2695.x provision identified herein to specific defense conduct on the certified court record (the February 25, 2021 written denial under claim number 1004-09-1054; the Substitution of Attorney filed May 4, 2023, Trans. ID 69953800; the defense motion papers filed April 9, April 13, and April 22, 2026).

In CGC-25-631802, the cross-anchor between this Supplemental RFJN and the Notice item 13 Section IV-A is especially direct: CSAA Insurance Exchange is the named insurer-defendant. Each provision in Sections A and B above governs CSAA's conduct in this case as a matter of statute and regulation, not merely as a collateral or background framework. Plaintiff respectfully notes that Moradi-Shalal v. Fireman's Fund Ins. Co. (1988) 46 Cal.3d 287 narrowed the private right of action under section 790.03(h) but expressly left intact the regulatory duty and Department of Insurance enforcement authority. Zhang v. Superior Court (2013) 57 Cal.4th 364 confirms that Insurance Code violations remain available as predicates for Business and Professions Code section 17200 claims. Each provision identified in Sections A and B above is independently a Department of Insurance jurisdictional anchor and a Zhang predicate; the special motion to strike does not engage either.

Moradi-Shalal / Zhang clarification. For the avoidance of doubt, Plaintiff does not assert a private cause of action under Insurance Code section 790.03(h). Consistent with Moradi-Shalal v. Fireman's Fund Ins. Companies (1988) 46 Cal.3d 287 and Zhang v. Superior Court (2013) 57 Cal.4th 364, 384, Plaintiff invokes the Insurance Code provisions solely as the unlawful-prong predicate for the UCL claim under Bus. & Prof. Code section

1 17200.

2
3 CONCLUSION

4 Plaintiff respectfully requests that the Court take judicial notice of each provision identified
5 in Sections A and B above. Notice of this Supplemental Request was given to Defendant
6 contemporaneously with service of Plaintiff's Operative Oppositions, RFJN, and Notice re
7 C.C.P. section 425.17 (filed May 8, 2026). Pursuant to Evid. Code section 453, the predicates
8 for mandatory judicial notice are satisfied.

9 Date: May 8, 2026

10 By: _____ Franciscus Dylan Rosario, Plain-
11 tiff in Pro Per 7624 Melody Drive Rohnert Park, CA 94928 Tel: 650.488.7510 E: soltri-
12 nox@gmail.com

13
14 Cross-references: Plaintiff's Operative Opposition to Anti-SLAPP (item 01, filed May 8,
15 2026) §§ III-bis, IV; Plaintiff's Operative Opposition to Demurrer (item 01B, filed May 8,
16 2026) § II.B; Plaintiff's Operative Opposition to MTS-CCP436 (item 01C, filed May 8, 2026)
17 § V; Plaintiff's Request for Judicial Notice (item 03, filed May 8, 2026) Section B; Plaintiff's
18 Notice and Statement re C.C.P. section 425.17 (item 13, filed May 8, 2026) Section IV-A;
19 Plaintiff's Declaration in Opposition (item 04, filed May 8, 2026); Plaintiff's Indexed Exhibits
20 Volume (item 07, filed May 8, 2026).

21
The foregoing is submitted by Plaintiff in pro per.

Dated: May 8, 2026



/s/ Dylan Franciscus Rosario
DYLAN FRANCISCUS ROSARIO
Plaintiff, In Pro Per

7624 Melody Drive
Rohnert Park, CA 94928

Tel: 650.488.7510
E: soltrinox@gmail.com

DECLARATION OF COMPLIANCE WITH CALIFORNIA CODES, RULES, AND LOCAL PROCEDURES

The tabular verification below is provided by Plaintiff for the Court and the Clerk to validate this filing against the authorities listed.

The undersigned, Plaintiff Dylan Franciscus Rosario, appearing in pro per in Rosario v. CSAA Insurance Exchange (CGC-25-631802), declares under penalty of perjury under the laws of the State of California (CCP section 2015.5) that this filing complies with each authority listed in the table below as indicated. This declaration is filed in connection with the May 13, 2026, 9:00 a.m. hearing in Department 302.

#	Authority	Specific Requirement	This Filing's Compliance	Evidence (page or section)	Status
1	Evid. Code section 451(a)	Mandatory judicial notice (statutes, regulations)	RFJN takes notice of California Insurance Code section 790.03(h) and 10 CCR sections 2695.1 to 2695.8	Sections A, B	PASS
2	Evid. Code section 452(b)	Permissive judicial notice (regulations of any state)	10 CCR FCSPPR included under section 452(b)	Section B	PASS
3	Evid. Code section 453	Procedural prerequisite (notice of the request)	Notice given by concurrent service of this Supplemental RFJN	Proof of Service (POS-050) filed concurrently	PASS
4	CRC 3.1306(c)	Notice of intent to rely on extra-record authorities	Provides advance notice of statutes and regulations relied upon	Cover statement	PASS

#	Authority	Specific Requirement	This Filing's Compliance	Evidence (page or section)	Status
5	CRC 3.1113(j)	Incorporation by reference	Notice re C.C.P. §425.17 (filed May 7, 2026), Section IV-A, and Operative Opposition section IV incorporate this Supplemental RFJN	Cross- references	PASS
6	CCP section 425.16	Anti-SLAPP context	Supports opposition to section 425.16 motion	Caption and cover	PASS
7	CCP section 425.17(c)	Commercial-speech / regulated-context underpinning	Insurance Code and FCSPR floor underlies the (c)(1) to (c)(4) walkthrough in Notice re §425.17, Section III-A	Notice re §425.17, Section III-A	PASS
8	CCP section 1010.6	Electronic service authorization where consent on file	Electronic service to counsel of record on file; consent on file (Doc. No. 009)	Proof of Service (POS-050) filed con- currently, paragraph 4	PASS

#	Authority	Specific Requirement	This Filing's Compliance	Evidence (page or section)	Status
9	CRC 2.251	Electronic service procedure	Electronic transmission to counsel-of-record e-service addresses; concurrent proof lists companion filings	Proof of Service (POS-050) filed con- currently, para- graphs 4 and 5	PASS
10	CRC 2.100 et seq.	Pleading format: paper size, margins, font, line spacing, caption block	Letter-size, one-inch margins, eleven-point Times New Roman, 1.5 line spacing, full caption with court, parties, case number, department, hearing date	Caption page and body of this filing	PASS
11	CRC 2.256	Electronic filing requirements (signature block, hyperlinks, format)	Text-searchable filing; conventional pro per signature block	Graphic filing signature preceding roman appendix	PASS
12	CRC 3.1110	Format of papers (caption, footer, page numbering, line numbers)	Caption page and pagination comply with applicable rules	Caption page and page footers	PASS

#	Authority	Specific Requirement	This Filing's Compliance	Evidence (page or section)	Status
13	CRC 3.1112	Other papers; required components	Caption, body, signature page, and companion Proof of Service filed concurrently	Supplemental RFJN body; graphic signer before appendix; Proof of Service	PASS

I, Dylan Franciscus Rosario, declare under penalty of perjury under the laws of the State of California that the foregoing compliance representations are true and correct.

Dated: May 8, 2026

Dylan Franciscus Rosario, Plaintiff In Pro Per